

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CLBC048835: CYROUS SAHEBGHALAM vs GELENA B GUTLIN

09/03/2026 in Department 43

Motion for Summary Judgment

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff Cyrus Sahebghalam's motion for summary judgment is DENIED.

To the extent that Plaintiff has made an alternative motion for summary adjudication of Issue No. 1, that is also DENIED.

DISCUSSION

1. Late-filed papers

Defendant's opposition was filed August 20, 2026, 14 days before the September 3, 2026 hearing, rather than the 20 days before the hearing required by Code of Civil Procedure section 437c, subdivision (b)(2). The Court exercises its discretion under California Rules of Court, rule 3.1300(d), to consider the opposition. Plaintiff received the papers, filed a full merits reply, and identifies no case-specific prejudice from consideration. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765; *Mackey v. Board of Trustees of California State University* (2019) 31 Cal.App.5th 640, 657.)

Plaintiff's August 24, 2026 reply is considered. The 11th day before the hearing fell on Sunday, August 23, 2026; Code of Civil Procedure section 12a, subdivision (a) extended the deadline to Monday, August 24. (Code Civ. Proc., §§ 12a, subd. (a), 437c, subds. (b)(4), (b)(6).)

The documents filed after that date by Defendant are untimely and filed without first obtaining leave of court, and are not considered.

2. Request for judicial notice

Defendant's request for judicial notice is GRANTED as to the existence, recording or filing dates, and legally operative language of Exhibits A-C: the June 22, 2023 grant deed, the July 14, 2025 quitclaim deed, and the March 30 and July 17, 2026 Joint Trial Setting Conference Statements. (Evid. Code, § 452, subds. (c), (d).) Judicial notice is not taken of disputed hearsay assertions or of the truth of the contents of those documents. (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 264-265, disapproved on another ground in *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 939, fn. 13.)

3. Evidentiary objections

The Court rules only on objections material to disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Defendant's August 25, 2026 objection to the Declaration of Oran Subanakyot and its exhibits as purportedly new reply evidence is OVERRULED. The declaration bears the Court's June 2, 2026 electronic filing stamp, its caption states it was filed concurrently with the motion, the notice of motion identifies it as a supporting paper, and the moving memorandum and separate statement cite it. It therefore was part of the original moving papers, not evidence first offered on reply.

No other separately numbered evidentiary objections were considered. Defendant's alternative request for a short continuance is DENIED as moot because the Court has considered her opposition on the merits.

4. Plaintiff's Undisputed Material Facts ("UMFs")

UMF Nos. 1-3: UNDISPUTED; ESTABLISHED.

UMF No. 4: DISPUTED; ESTABLISHED that, as of July 26, 2025, Defendant owed at least \$12,230 in past-due rent. (RFA No. 19.)

UMF Nos. 5-8: UNDISPUTED; ESTABLISHED.

UMF No. 9: UNDISPUTED; ESTABLISHED that Defendant remained in possession without paying rent until October 15, 2025. The amount of resulting damages is NOT ESTABLISHED.

UMF No. 10: UNDISPUTED; ESTABLISHED.

UMF No. 11: DISPUTED; NOT ESTABLISHED.

UMF Nos. 12-16: UNDISPUTED; ESTABLISHED.

UMF No. 17: UNDISPUTED; ESTABLISHED (Corrected to state that Defendant “did not notify” Plaintiff of repairs needed before this action. The word “not” was inadvertently omitted from the UMF; cited RFA No. 23 supplies it.)

UMF No. 18: UNDISPUTED; ESTABLISHED. (Although Plaintiff cites RFA No. 25, RFA No. 24 is the admission that Defendant made no repairs during the preceding 12 months.)

UMF Nos. 19-28: UNDISPUTED; ESTABLISHED.

5. Analysis

The January 14, 2026 order deeming Plaintiff’s Requests for Admission, Set One admitted conclusively establishes the admitted matters in this action. (Code Civ. Proc., § 2033.410, subd. (a); *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.) These admissions establish, among other things, that Plaintiff’s ownership, the lease, Defendant’s rental obligation, nonpayment for June and July 2025, service of the three-day notice, continued possession without payment, breach, habitability, and the absence of affirmative defenses. Defendant may not contradict these admissions through her declaration, the deeds, or argument.

The admissions do not establish the amount of the judgment Plaintiff requests. RFA No. 19 establishes that Defendant owed at least \$12,230 as of July 26, 2025, but no admission fixes holdover damages, establishes a \$280 daily fair-rental-value rate, resolves the disposition of the security deposit after Defendant vacated, or establishes a reasonable attorney-fee award.

Plaintiff’s verified Complaint alleges fair rental value of \$260 per day and requests that rate beginning August 1, 2025. (Compl., items 13, 19(g).) Plaintiff’s declaration claims \$280 per day, by dividing the monthly rent by 30, despite \$7,750 divided by 30 equalling \$258.33. (Sahebghalam Decl., ¶¶ 5, 13(ii)(1).)

The moving evidence also attaches a lease showing that Defendant paid a \$21,450 security deposit, held by the owner, that could be used to cure a rent default and had to be accounted for within 21 days after Defendant vacated. (Sahebghalam Decl., ¶ 4 & Exh. 2 [Lease, ¶ 4(A)-(B), Move-In Costs table].) Defendant vacated October 15, 2025. (Id., ¶ 11.) Plaintiff submits no evidence showing whether the deposit was returned, retained, or credited and provides no post-vacancy accounting. RFAs Nos. 9 and 10 establish only that Plaintiff never agreed to let Defendant use the deposit for past-due or June/July rent; they do not establish how Plaintiff disposed of the deposit after the tenancy ended. Civil Code section 1950.5 and the lease make that disposition material to the net amount recoverable. (*Granberry v. Islay Investments* (1995) 9 Cal.4th 738, 744-745, 749-750.)

A moving plaintiff must prove every element entitling the plaintiff to judgment, including damages, before the burden shifts. (Code Civ. Proc., § 437c, subd. (p)(1); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851; *Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1195.) Because Plaintiff's own proof leaves the recoverable amount unresolved, Plaintiff has not established entitlement to judgment on the sole cause of action.

Plaintiff's reply asks the Court to grant summary judgment as to liability and at least \$12,230, leaving the remaining computational dispute unresolved. California law does not permit a plaintiff to obtain summary adjudication of liability alone where damages remain an unadjudicated element of the cause of action. (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 238-242; see *DeCastro West Chodorow & Burns, Inc. v. Superior Court* (1996) 47 Cal.App.4th 410, 422-423.) The moving separate statement did not separately identify any affirmative defense for adjudication or invoke the stipulated procedure in Code of Civil Procedure section 437c, subdivision (t). The motion is ambiguous regarding a request for summary adjudication of issues.

Under Code of Civil Procedure section 437c, subdivision (g), triable controversies remain concerning the proper fair-rental-value rate and holdover period, the resulting gross damages, the disposition and credit of the \$21,450 security deposit, and therefore the amount (if any) of the net monetary judgment.

Plaintiff's motion for summary judgment is therefore denied.

To the extent Plaintiff alternatively seeks summary adjudication of the sole cause of action identified as Issue No. 1, that request is also denied.

Defendant is ordered to serve notice of the Court's ruling.